

gmw

Date: 12/16/19

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION PURSUANT TO W.S. § 15-1-404(b) CERTIFYING COMPLIANCE WITH W.S. § 15-1-402 FOR A CITY-INITIATED ANNEXATION FOR A PORTION OF LAND GENERALLY LOCATED BETWEEN OLD HAPPY JACK ROAD AND HAPPY JACK ROAD, AND WEST OF I-25."

WHEREAS, the City of Cheyenne desires to initiate annexation proceedings for a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W, Laramie County, Wyoming, said tract of land more particularly described as follows:

Beginning at a point on the southeasterly corner of said F.E. Warren AFB Military Reservation, from which the north quarter corner of Section 1, Township 13 North, Range 67 West, bears S.74°15'13"E. (when considering the north line of the NW¼ of said Section 1 has a bearing of N.89°57'36"W.), a distance of 1239.86 feet; thence N.78°35'41"W., a distance of 1297.38 feet; thence N.35°59'10"W., a distance of 937.39 feet; thence S.16°04'22"W., a distance of 1019.91 feet; thence S.82°06'12"W., a distance of 2152.23 feet to the southerly right-of-way line of Happy Jack Road; thence northeasterly along said southerly right-of-way line, a distance of 168.94 feet along a curve concave to the northwest, having a radius of 2009.86 feet and a central angle of 04°48'57" (chord bearing of N.62°46'52"E., chord distance of 168.89 feet); thence N.60°22'24"E., along said southerly right-of-way line, a distance of 3833.62 feet; thence northeasterly along said southerly right-of-way line, a distance of 296.87 feet along a curve concave to the southeast, having a radius of 1045.92 feet and a central angle of 16°15'46" (chord bearing of N.68°30'17"E., chord distance of 295.88 feet to the westerly right-of-way line of Interstate 25); thence S.26°00'04"E., along said westerly right-of-way line, a distance of 1432.53 feet; thence S.15°38'47"W., along said westerly right-of-way line, a distance of 553.07 feet to the point of beginning. Containing 75.277 acres more or less; and

WHEREAS, W.S. § 15-1-404 outlines the requirements of local governments in initiating annexation proceedings and requires that a resolution be adopted certifying compliance with W.S. § 15-1-402; and

WHEREAS, the proposed annexation is compliant with W.S. § 15-1-402. The proposed annexation meets the following criteria found in W.S. § 15-1-402(a):

- (i) The annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the city or town;
- (ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the annexing city or town;

- (iii) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;
- (iv) The area sought to be annexed is contiguous with or adjacent to the annexing city or town, or the area meets the requirements of W.S. § 15-1-407;
- (v) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. § 15-1-410; and
- (vi) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S. § 15-1-405(a), will send by certified mail to all landowners and affected public utilities within the territory a summary of the annexation report as required under subsection (c) of this section and notice of the time, date and location of the public hearing required by W.S. § 15-1-405(a).

WHEREAS, an annexation report has been created by the annexing City, containing, at a minimum, the required information from W.S. § 15-1-402(c). The City of Cheyenne shall prepare for each landowner and affected public utility so requesting in writing, the estimated cost of infrastructure improvements required of the landowner and affected public utility related to the annexation pursuant to W.S. § 15-1-402(e); and

WHEREAS, the annexation of this land does not create an area which is situated entirely within the boundaries of the City but is not annexed; and

WHEREAS, this land does not meet the criteria under W.S. § 15-1-412 requiring an owner's signature for annexation.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the land described above is compliant with W.S. § 15-1-402, and that the procedures outlined in W.S. § 15-1-405 and W.S. § 15-1-406 shall hereby be initiated.

PRESENTED, READ AND ADOPTED THIS ____ DAY OF DECEMBER, 2019.

MARIAN J. ORR, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK